

APRIL

3rd

1920

20c

TWICE A MONTH

Adventure



Gordon Young
J. Allan Dunn
W. C. Tuttle
Farnham Bishop
G. A. Wells
Carl Clausen
Romaine H. Lowder
Ellsworth Noel

THE BEST

APRIL

3rd

1920

20c

TWICE A MONTH

Adventure



Gordon Young
J. Allan Dunn
W. C. Tuttle
Farnham Bishop
G. A. Wells
Carl Clausen
Romaine H. Lowder
Ellsworth Noel

The Project Gutenberg eBook of Assisting Ananias

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Assisting Ananias

Author: W. C. Tuttle

Release date: July 19, 2026 [eBook #79135]

Language: English

Original publication: New York, NY: The Ridgway Company, 1920

Other information and formats: www.gutenberg.org/ebooks/79135

Credits: Prepared by volunteers at BookCove (bookcove.net)

*** START OF THE PROJECT GUTENBERG EBOOK ASSISTING
ANANIAS ***



Assisting Ananias

by
W. C. Tuttle

ASSISTING ANANIAS

by W. C. Tuttle

Author of "Precedents in Piperock," "Shepherds for Science," etc.

"Chuck" Warner is the biggest liar on earth. There may be liars who can figure out a whopper of a lie once in a while, and then lay back and let her go as she lies, but Chuck never lays back. No, sir. That *hombre* never lays down on the job.

Chuck has a Roman-nosed sort of a face, and a pair of "so-help-me-grandma" eyes that would bunco an angel. He's got a pair of flexible ears, like a burro, which he wiggles a heap when contemplating.

Me and Chuck and "Magpie" Simpkins sets on the top pole of a corral at the Cross J, while Magpie seems to dig deep-like into a sheet of newspaper. Magpie is so long that he can hook his spurs into the lower pole of that fence, and I can tell by the way his tired mustache seems to wiggle that he's interested.

"I'm ambitious," states Chuck. "I don't want to be no forty-a-month puncher all my life. That's the reason I consults you fellers. You've got to open the door when Opportunity shows up, ain't you?"

"Yeah," nods Magpie. "It's reasonable reasoning, Chuck. Where did you get this here paper?"

"Henderson's barber-shop. What do you think of her, Magpie?"

“Chuck—” Magpie backs against a post and crosses his long legs —“Chuck, you may be the realest liar in the West, but this here proposition will take something bigger than a danged lie. You can’t walk right up to the door of that million-dollar teepee and say, ‘Papa, look at your long lost Ashburton.’

“You’ve got to prove things, Chuck. You’ve got to show ’em the bullet-hole, as it were. They ain’t going to hand you no ten million dollars just because you wiggles your ears at ’em and says, ‘I’m him.’ Them folks back there will hanker for something beside your word, Chuck.”

“I reckon you’re right, Magpie.”

Chuck sighs deep-like and chaws on his chin-strap.

“It could be me, though. Ashburton is described as being small for his age and blue-eyed. He runs away to fight Injuns twenty years ago, and his folks wouldn’t know him now. I left home about the same time, but it’s a cinch my name wasn’t De Puyster.

“But, Magpie, it’s a big pot to play for, and a feller can’t win unless he draws cards, can he? Think of ten million dollars! I figured her all out. At forty a month it would take me twenty thousand, eight hundred and thirty-three years and four months to amass that much, if I didn’t spend a cent.”

“Miserable outlook,” agrees Magpie sympathetic-like. “What do you think, Ike?”

“He’d never amass that much,” says I. “Chuck ain’t steady enough. Let me see the paper.”

Said paper was published somewhere on Sunday. One side of her tells the virtues of some kinda baking-powder that, according to the obituary, would raise big on two small pair; but on the other side is a whole page devoted to Ashburton De Puyster, the missing heir.

According to the legend, little Ashburton hopped the home corral when he was about twelve, and ain’t peeped publicly since. Since he left home his pa has piled up shekels until he’s lousy with wealth, and little Ashburton has about ten million coming when he gets back.

They've had detectives prowling around for years, but all they ever turned in was expense accounts. The deduction is that little Ashburton traileth around somewhere in the West, likely with a Injun tribe.

There's a big picture of a milk-fed baby in the middle of the page, and around it is a lot of pictures which shows little Ashburton living with a tribe of Injuns, which I don't *sabe* by their dress; and another shows him traveling alongside of the moon, setting on a travois, smoking a calumet pipe. I hands the paper back to Magpie.

"What do you think, Ike?" asks Chuck.

"Looks like a cross between Siwash, Piegans and Navaho," says I.

"Which is?"

"The Injuns he lives with."

"You're more observing than intelligent," opines Chuck. "I mean, what do you think my chances are to be little Ashburton De Puyster?"

"It's all right with me, but I'd advise caution, Chuck. That town is beyond the Dakota border, and any time you gets beyond that there's a heap of danger. I don't trust the United States after I gets beyond where they blaze trails."

Magpie sort of nods, and snaps his cigaret into the corral.

"Ike's right—for once," he observes. "She's a long shot, Chuck, but as you say, it's a hi-yu stake. A million is a lot of money."

"Ten million," corrects Chuck.

"Originally, Chuck. My idea is that you gets eight million and me and Ike split the other two. Eight is enough for you, ain't it?"

"Talk about it," says Chuck. "I want to know what I'm giving away all that money for."

"To get help to prove one of your danged lies. Come up to my cabin tonight, and we'll see what we can figure out."

Chuck wiggles his ears some more, and we all shakes hands. Me and Magpie gets our broncs and goes home, and then Magpie goes into a trance.

He sets down in a chair, puts his feet on a shelf and settles down on the back of his neck. From the restful attitude of him I'd say that his remote

ancestors were bats.

I has to shoot twice under his chair to call him to supper, and he eats in silence. Along about dark Chuck rides up and comes in.

“How’s the idea coming, Magpie?” he inquires.

“How much money you got, Chuck?”

“About two hundred I’ve saved for a rainy day.”

“The wet season is at hand,” proclaims Magpie. “It can’t deluge much on two hundred, but it will make a little dampness. Me and Ike have got three broncs, six burros, which ought to be worth a little, and we’ve still got a few hundred left in the bank. Maybe we can rustle about a thousand between us to sweeten the pot; eh, Ike?”

“Deal me a hole-card, at least,” says I.

“She’s a million-dollar stake, Ike.”

“Uh-huh,” says I. “I know, but I want to see what I’ve got to beat.”

Magpie puts his feet back on the shelf, lights a cigaret and peers at the ceiling.

“Thusly she appears to old man Simpkins’ favorite child: The De Puyster family wouldn’t know Ashburton from one of Hank Padden’s Seven-A calves, ’cause he’s changed a heap in twenty years. They opines that little Ashburton hived up in the West.

“In reality, little Ashburton comes into cactus lands, and is captured by a fierce tribe of Injuns. Thereupon he becomes a blood-brother in the tribe, the same of which ranges beyond where the roads are cut out. He still clings to the family name, the same of which is uncommon. Later on he becomes tired of scalping and falls in with a old prospector.

“Comes a time when the call of blood whispers thusly, ‘Go home and see what the old wickiup looks like.’ Ashburton listens to the call like a coyote to the cackle of a hen, and then he decides to go East.

“He discloses the idea to his old chief and to the old prospector. They holds a council, and decides to sell a few feet of wampum and take the

pilgrimage with him.

“We ain’t seen no paper. *Sabe?* We’re innocent of all wrong. We’ve all got a part to play in the drama. See the idea?”

“What is my part?” I asks.

“You’ll be the child’s Injun papa, Ike—his adopted papa.”

“Like —— I will. Me? A papa to Chuck Warner? Not any, thank you!”

“You will!” snaps Magpie. “You adopted him, and you can’t renege.”

“I did not!”

“You say you won’t?”

Magpie drops his feet back on the floor, and squints at me.

“You say you won’t, Ike?”

“Well,” say I, “all I can say is this: I showed danged poor taste.”

“I’m the old prospector,” says Magpie. “I’ll be knowed as—as—what would be a good name to call me?”

“I know,” says I. “But it wouldn’t never get into print. You couldn’t pick a worse one than you’ve got.”

“You’ll be knowed as Black Hawk, Ike—chief of the Cactus tribe.”

“Symbolic,” says I, “’cause somebody is going to get stuck.”

“I ought to have a Injun name,” says Chuck. “Naturally I’d have one in the tribe.”

“We’ll call you Sa-in-Ana,” says I. “Spell it backwards and make any translation you like.”

Thus ended the council. Our livestock, saddles, ropes and so forth brought up two hundred and twenty-five dollars, and with what we’ve got in the bank brings the ante to a little over nine hundred. Piperock is naturally inquisitive as to our pilgrimage.

“Brazil,” says Magpie. “I have cornered the nut supply of South America.”

“And of Yaller Rock County, too, Magpie,” admits “Buck” Masterson.

“Pshaw!” grins Magpie. “I’m taking these along for seed.”

Piperock hated to see us go. When Art Miller managed to get his four stage horses under control I found a hole in my new hat, and Chuck had two

buttons shot off his vest. Magpie and Art had sense enough to drop into the bottom of the stage until we're out of sight.

It sure is fine to have a send-off like that. They wouldn't hurt us for the world, but they let their feelings get the best of them, and they forget where they're shooting.

"Three tickets to Burlingame," says Magpie.

"Burlingame what?" asks the depot agent at Paradise.

"You got more than one?" asks Magpie.

"It's in Ohio," says Chuck, "I remember that much."

"Takes a good memory to know where you're going," says the feller, and then he proceeds to make out tickets which are as long as a Summer day in Yuma.

"Train leaves in an hour," says he.

"That gives us plenty of time," says Magpie as we went outside.

"Plenty of time to do what?" I asks.

"Get you shaved smooth, Ike. You never seen a Injun with whiskers."

And right then, for the first time in years and years, Ike Harper saw himself as he really is. After the shave is over Magpie and Chuck hurries me over to a vacant shack near the depot.

"For what?" I asks.

Magpie unties that war-sack and dumps the contents out on the ground. Shades of Sitting Bull! Magpie must have robbed seven tribes to get that bunch of garments. There's everything from a string of clamshells to a bow and arrows. Then he produces a small can and a brush.

"What you got there? I asks, and he holds it before me.

The epitaph proclaims it to be Henry's Mahogany Stain—for interiors.

"I ain't dry, Magpie," says I. "Drink it yourself."

"You've got to be a Injun color, Ike," says Chuck, wiggling his ears.

"We'll only run her down to your collar-bone and from your finger ends to your shoulders. We've got some danged nice-smelling stuff for your hair."

I don't blame that train for whistling. I stood there on the platform and watched her roll in, and I wouldn't blame that train if it had turned right

around and went back.

“Look stoical like a Injun, Ike,” says Magpie. “Don’t grin.”

“Grin ——!” says I. “I can’t move my face. I’m beginning to set.”

I’ve sure got some regalia, if you asks me. On my purple locks I’ve got a moth-eaten Piegan war-bonnet, and around my neck I’ve got three strings of clam-shells. I’ve got on a low-necked buckskin shirt that was made for a twenty-eight chest, and the sleeves only come half-way from my elbows to my wrists.

I’ve got on flannel panties, which were made from the rainbow, the seat of which was never included by the maker, forcing me to wear a blanket around my waist to hide the fact. The moccasins were made for a sixteen foot and have holes in the sole. I’ve got a stone pipe about three feet long, decorated with chicken feathers, and a bow and arrows.

We makes a break for the train as soon as she stops, but before we could climb aboard a conductor heads us off.

“Pullman?” he asks.

“Burlingame,” says Magpie.

“Standard?” says he.

“Ohio,” says Chuck.

“Are you going to ride in the sleeper?” he snorts mean-like.

“Oh, sure,” says Magpie. “Let down the bars.”

“Is the Indian one of your party?” he asks.

“This ain’t no party,” says Chuck. “This is business. He’s with us.”

“Smoking-car for him,” says the conductor. “No Injuns in the Pullman. Aboo-o-o-o-ard!”

They wouldn’t let me in that car with Magpie and Chuck.

“Against the rules,” says the conductor. “No argument. Smoking-car is five cars ahead.”

“Papa, that’s hard luck,” says Chuck, looking at me sorrowful-like.

“Your son feels that humiliation.”

“You Indian too?” asks the conductor.

“My name is De Puyster!” snaps Chuck, and him and Magpie went inside.

“Can you understand English?” asks the conductor.

“No, I can’t,” says I. “Lot of things I can’t understand, and one of ’em is this: Why can’t I ride in a sleeping-car?”

“Against the rules for Indians to ride there.”

“I wasn’t born a Injun.”

“I wasn’t born a conductor either,” says he. “But that wouldn’t keep me from being throwed out if I got into a place where they didn’t allow conductors.”

“Some day,” says I, “I’m going to have enough money to buy this road, and then I hope you strike me for a job.”

“All right,” says he. “I don’t care a whoop who I work for.”

I’ve got my money and ticket in my medicine-pouch, so I opens the door of that car, and starts off down the aisle. Everybody seems to get a heap interested in me.

That danged train seems to weave a heap, and I has a hard time hitting a straight trail. Pretty soon I has to grab the back of a seat.

A couple of ladies in the seat seem to get interested in my blanket, and one of ’em says:

“Marjorie, here is a real Indian! Just think of it!”

“How romantic!” gasps the other one, fingering my blanket. “Oh, I’d love to have that robe for my den. Sister Mary, did you ever see such gorgeous colors in your life?”

“Perhaps we can purchase it,” says Mary. “The Indian has little idea of value, and we might get a bargain.”

The train gives another roll, and I sets down with them.

“How much you take?” asks the sister Mary person, making sign-talk that nobody but herself could read. “You sellum blanket? You *sabe* trade?”

“Ma’am,” says I, “I’ll trade you even for a pair of pants.”

Bang! I got a wallop right across the varnish, and it knocked my war-bonnet down over one eye.

“The idea!” shrieks one of ’em. “The idea!”

“Well,” says I, “if you had on my clothes you’d see the idea different-like,” and then I ambled out of there.

I didn’t halt any more until I comes to a car where the smoke is thick. Then I sets down and arranges my bonnet. I’d say that sister Mary had some wallop, but she never busted the varnish crust, at that.

I’ve got a small bottle of hooch hid away inside of my seatless panties, and as soon as I gets settled I raises it to my lips.

“Here!” snaps a voice, and I gets yanked loose from my bottle. “No drinking on this train.”

It’s the conductor, and he glares at me like I’m something awful.

“Where did you get this liquor?” he asks. “Somebody give it to you?”

I’m so danged mad I can’t answer.

“I’d like to catch the man who would sell whisky to an Indian,” says he. “I’d fix ’im!”

And he pokes off down the car out of sight.

I knowed a feller who was scalped by Injuns, and I used to feel sorry for him, but right now my sympathy goes out to the Injun who done the deed; he ought to have taken the feller’s hide, too. They talk about the atrocities practised upon the whites by savage Injuns! Honest to grandma, I think the Injuns were too meek.

I didn’t want to get into no fights, ’cause I felt that if anybody hit me anywhere between the dandruff and the collar-bone I’d crack just like shellac. That blamed mahogany stuff has set until I’m glazed all over the face, and I hope nothing funny happens.

I can’t shut my eyes and can hardly open my mouth. I just sets there and thinks less of a million every minute. I’d give my share to be able to grin.

Along about dark Magpie and Chuck comes in.

“I asked ’em if they fed Injuns in the feed-car, but they said no,” states Magpie. “So me and Chuck swiped something for you.”

Chuck digs deep into his pocket, and then makes a fool face.

“Gee cripes! Here’s what’s left, Ike.”

He holds out an awful-looking mess in one hand.

“Originally what?” I asks.

“Peach-pie.”

“What did you bring, Magpie?” I asks.

“Knife and fork. I’d ’a’ got a spoon, Ike, but the waiter was looking.”

“Never mind,” says I sweet-like. “The knife and fork will do. I suppose tonight you’ll bring me a feather out of your pillow.”

“Nope; we’ve got a scheme, Ike. Me and Chuck and you owns both tiers of that bunk. *Sabe?* We’ll sleep down-stairs, and tonight when everybody is asleep, you sneak back there and crawl into the upper bunk. Nobody will know the difference.”

“Yes,” says I; “and one thing more: I want you to put that war-sack up there so I can get my own clothes. *Sabe?* I’m willing to be a Injun on land but not on a train.”

“All right,” agrees Chuck. “I reckon we can make a Injun out of you later on. We’ll leave your clothes in the bunk. *Adiós.*”

Cometh night. The lights are turned low and the snores turned high. Big Chief Black Hawk looketh for a place to hold up. Big chief goes in single file down the narrow cañon. He’d have a —— of a time going in anything but single file down that train.

I thought that somebody reached out to shake hands with me, but after shaking hands with it I finds it’s a foot. I’m halfway through the next car when a woman shoves her face out between the curtains and whispers hoarse-like—

“Good-night, honey!”

She looks right into my face, and subsides without a groan. Her hand flopped over the edge of the bunk, so I shook hands with her and put it back. I’ll bet she felt of her scalp when she awoke.

I counted four cars and then began to count numbers until I found the right one. I didn’t want to wake anybody up, but I’m no humming-bird. I’ve

occupied one of them upper bunks before, and I'm wise to the fact that you need a ladder. I didn't have any ladder with me, and I sure didn't want to take no chances yelling for a partner, so I decided that I'd have to grow wings or hop high.

There's so much snoring going on that I figures a little more noise won't do any harm. I opens the curtains a little ways, walks back up the car, spits on my hands so my feet won't slip, and then I gallops right down the narrow aisle.

I figured I could get a good run and then hop plumb inside. The idea was all right—like the trade I tried to make with my blanket.

I don't take more than three strides when into the other end of the car comes a female person. She's dressed in white, and her golden hair was hanging down her back.

It must 'a' been a shock to her to see a wild Injun galloping down the aisle toward her, 'cause she lets out a yelp like a lost soul, and started going back.

I say "started going back" 'cause she don't no more than get up a little speed when she meets that colored porter person. I hears a yell and a bump, and sees a pair of number seventeen soles in the air. Then I hears a agonized voice inquire:

"Law-w-w-w-dee! Law-w-w-w-w-dee! Whut's gwine on? Whut's gwine on?"

Black Hawk ain't passing out information. He leans back, takes a good aim, and it was a good shot—under the circumstances. I hops high and handsome, and twists into that bunk like a chip in a whirlpool.

Zowie! Somebody rolls over me. I gets a glimpse of a white nightgown, as the wearer sailed out where I sailed in, and I hears footsteps going away down the car.

"——!" says I, peering out. "I must 'a' picked the wrong nest."

"Ike!" I hears Magpie whisper. "Where are you?"

“Don’t ask fool questions!” I snaps. “Where are you?”

I hears several voices raised in argument, and the porter is telling about a “ghos’ whut come along.” I peers out again, and across the aisle is Chuck and Magpie peering out. I slithers out and dives in with them.

“You got into the wrong place, Ike,” says Magpie.

“You certainly do catch on to things quick, Magpie,” I replies, and then we pulls the curtains and snores industrious-like, ’cause a investigating committee is with us. They sure talked a lot.

“Injun?” asks the conductor. “I know him. We’ll search the train and put him off. I think he’s crazy. I took a bottle of whisky away from him today.”

“He’s either drunk or crazy,” says another voice.

“He’s crazy,” snores Chuck. “I hope they don’t smell the varnish.”

They searched every vacant berth in the train, but they didn’t find the Injun. I’d as soon be discovered as to try and sleep three in a bunk. ’Long about morning I crawled out, and Chuck boosted me into the upper bunk, and when morning came Ike Harper was himself, with the exception of an artificial poker-face.

There was a new conductor on the train and he didn’t pay any attention to me. He told Magpie that a Injun had jumped off the Overland last night, and that they were looking for the body.

I couldn’t get that varnish off. I scrubbed until my face is fairer than the beetlets of the fields, but she clings fast. I got enough cracked loose so I can carry on a conversation and wink one eye.

It is thus that we arrive at Burlingame. By that time the whiskers on my face has all decided that there ain’t no use trying to come out, so they all starts back in again. A barber got some varnish remover and cleaned me up pretty well, and then Chuck and Magpie opine that I’ve got to turn aboriginal again.

I backs into a corner and hauls my gun. I vetoes varnish now and evermore, but Magpie has some brown dye which won’t make me stiff in the face. It was hi-yu stuff, but it turned purple on the face in spots, which made me look like I’d had a awful fight lately; and when they gets me back

into my regalia, all I need is to be hit in the face with a loose egg to be a Indian Summer sunset.

They fixes me all up in a old lodginghouse, and then we pilgrims straight for a prominent place to hang out, where the inquisitive may look upon us. Burlingame ain't what I'd call a happy place to live in. There ain't a kid or a dog in sight, and the inhabitants seem to ride behind closed doors, reserved-like. A policeman stops us and seems interested.

"Got a license?" he snaps.

"Dog, marriage or liquor?" asks Magpie.

"Medicine."

"We ain't sick," says Chuck.

He looks us over mean-like, and asks—

"Where's your outfit?"

"Cross J," says Chuck. "Yaller Rock County, Montana."

"Yeah?" says he mean-like. "Well, don't try peddling any Injun pills around here. See? You fellers better hit something smaller than Burlingame. Get me?"

I expected it of Magpie Simpkins. He's the suddenest person on earth, and I'm here to bet that when the policeman woke up he knowed he'd been hit. We propped him up against a lamp-post and put his hat over his eyes to shade his nose from the sun.

"You'll get us in trouble, Magpie," says I.

"He said to hit something, didn't he?" asks Magpie. "Didn't he say, 'Get me'? Well, I got him. He talked too much."

Pretty soon a feller comes along with one of them automobiles with windows, and pulls up beside of us.

"Want to ride?" he asks.

"Well," says Magpie, "I'd tell a man."

We all climbed in and sets down on them spongy seats.

"Where to?" he asks.

"Any place you've got," says Magpie. "We're strangers. I'm Magpie Simpkins, a old prospector. This thirty-two-year-old with the odd face is

Ashburton De Puyster, in spite of it, and this old Cactus aborigine is Black Hawk, an ex-scalper. Any old place you takes us will suit us finer than frog-hair.”

“I was borned here,” says Chuck. “Town has changed in twenty years.”

That feller took us every place. We sure enjoyed that ride. Pretty soon I gets interested in a clocklike dingus on the side of the machine.

“That shows how far we’ve traveled,” says Magpie wise-like.

“Maybe you’re right,” says I, “but that’s the first one I ever seen that shows distance in dollars instead of miles.”

The feller sees us looking at it, so he turns.

“What kind of a way is that to show distance?” yells Magpie, and the car stops. “Have we rode thirty-two dollars?”

“That shows what you owe me,” says he, explaining-like.

“Oh,” says Magpie, “it does? Well, well! Now what you ought to have is another one what will show you what we’re going to pay you.”

“What do you mean?” he asks.

“You heard me talking, *hombre*! You invites us to ride, and then you turns the clock on us, eh? You opines we’re easy, I reckon. How does you turn them dollars back?”

“What do you mean?”

“It didn’t show anything when we got in, did it?”

“No, but——”

“Unwind it!” snaps Magpie, and shoves a gun into the feller’s ribs.

He turned her back.

“Fix her so she don’t add any more,” orders Magpie. “Now you may take us back where you picked us up, and the first nickel that thing shows means a bullet in your nervous system. *Sabe?*”

Gee cripes, but he was sore. I wanted to give him a quarter, but Magpie said there was nothing doing. It was worth that much, anyway, so I left it on the seat, but Chuck picked it up as he came out behind me.

He took our telescope and war-sack and pilgrimed to a hotel. Man, I'd stand up and announce that it was some hotel. There was a lot of folks in there, and they sure gave us an optical assay as we came in. From the way they stared I'd opine that strangers are fewer in that hotel than they are in Sam Holt's place in Piperock.

A feller in a band uniform tries to take our baggage away from us, but we managed to hang on to it.

"You tell the boss we want to sleep here," says Magpie, and the feller leads us up to a big counter where a slick-haired *hombre* stares at us.

"You the boss?" asks Magpie, and the feller fusses with his collar.

"¿Habla español?" asks Chuck, wiggling his ear.

"*Kumtuks Chinook*?" I asks, but he remains dumb.

"——!" snorts Magpie helpless-like. "That's all the languages we know. Give him the Piegan sleep sign, Black Hawk."

"You—you want a—a room?" he stammers.

"You deals in 'em, don't you?" asks Magpie.

"Yes, we—er——"

"Big enough for three," says Magpie. "We're all together."

"Detached for three will be twenty-five dollars a day," says he. "With bath, thirty-five."

"My gosh!" gasps Chuck. "It costs to get dirty in this village. Is there a horse-trough where we can wash our hands?"

The feller hands Magpie a pen.

"I'll register for all of us," says Magpie, and just about that time another wise-looking *hombre* saunters up behind the counter and looks at what Magpie writes.

"I—er—really don't know about the Indian," says he, "I—er—— Which one of you is Ashburton De Puyster?" he asks quick-like.

"I'm him," says Chuck. "Guts, feathers and all. Who wants to know?"

"Well, well!" says he, peering at Chuck. "Well, well!"

"Baths ought to be cheaper with so many wells coming in," grins Chuck.

The two behind the counter seems to talk in sign language, and then out comes two little jaspers, dressed like mounted policemen on parade, to show us where to hive up. Man, we got into a palace, if you asks me. We sets down and contemplates things, and Magpie observes:

“If we stay here I’m going to trade that war-sack for a red trunk. It looks like —— in here.”

We sets there and smokes a while, and all to once comes a knock at the door. We all yelps a welcome, and in comes two more slick lookers.

“I’m from the *Ledger*,” says the tallest one. “I would like to interview Mr. De Puyster.”

“Hop to it,” grins Chuck, and the other feller gets busy setting up a three-legged affair, which we decipher to be a photygraph outfit.

“We want first of all to know how you happened to come here?” says the feller. “Of course you know the detectives have been searching for you for years, don’t you?”

“What for?” asks Chuck.

“You know, don’t you?”

“I’ve been too busy killing Injuns to do much reading,” says Chuck, and the feller gets busy writing in a little book.

“How long have you been in the West? Do you remember your parents? Why did you run away? Have you been successful in the West? Are you going to live here? I want to know everything you can tell me.”

He shoots the questions at Chuck so fast that all he can do is suck on his cigaret and wiggle his ears.

“Twenty years—no—walking was too slow—I’m still alive—I hope not—you’d never believe me if I did,” answers Chuck slow-like, and the feller puts down all the answers.

We’re all setting on the sofya, and the photograph feller announces that he’s all ready.

“We’ll talk after the picture,” says the feller. “All ready?”

Bang! comes a flash and a report, like a shotgun shell with loose wads, and I loses my eyesight.

Bang! goes a gun beside me, and I slid off the sofya and crawled underneath. I waits a minute and then I crawls out the back and peers over.

There is that photygraft thing all doubled up among its spindling legs, and a bullet seems to have hit it square in the eye. Magpie is backed up against a door across the room, and Chuck is setting on the floor with his back against the sofya, and in his hands is his big Colt .45, from which smoke is still drifting.

“Quick work, Chuck,” applauds Magpie. “My gun stuck. Was it a bomb?”

“Where did you go, Ike?” asks Chuck. “Holed up immediate and soon,” says I. “Bow and arrow is too slow.”

Comes a gentle tap at the door, and Magpie yanks his gun.

“Come in!” he yelps.

The door opens and the head of the boss shows up. Behind him is two more fellers, who peer in careful-like. The boss seems to have trouble with his speech, and his fingers fuss with his vest pockets.

“Quit that!” yells Chuck. “Hands away from that vest pocket! Dog-gone me if anybody is going to slip a derringer on me!”

“I—I—we—assure you I—— What seems to be wrong, gentlemen?” he asks.

“One slick-ear tried to probe my past while his pal dynamites us,” says Chuck, fingering his gun. “But neither took so you’d notice it.”

“Pshaw!” says one of them. “It must have been the flash-light.”

“Meaning which?” asks Magpie.

“A charge of illuminating-powder exploded to sufficiently register the image on a sensitized photograph negative.”

“My ——!” grunts Magpie. “I thought that Noah Webster was dead!”

“Well,” says the boss, “I’m sorry it happened, but I guess it——er —— Well, nobody was hurt, so it’s all right.”

He picked up the busted outfit, and they all goes out.

“What’s the next move?” asks Chuck. “Do I go out and ask for that money now?”

“Chuck—” Magpie puts his feet on the table, and gets down on the back of his neck in the chair—“Chuck, you’re a natural-born hold-up. You ain’t got a gentle thought in your head. You let me think it out.”

“Think fast,” says Chuck. “This wickiup is costing us a dollar an hour. *Sabe*? One stack of whites every time the clock strikes.”

We sets there and smokes a while, and then comes another knock. Magpie puts his gun beside him and yells for the knocker to come in.

The door opens, and there it stands. He’s a skinny little *hombre*, with bunches of gray hair hanging to his cheek-bones, and he’s wearing a pair of specs that make him look like the granddaddy of he-owls. He’s dressed so slick that a fly would skid if it lit on him. He’s got a voice like “Scenery” Sims, and walks like a sage-hen with a cactus in its hip.

“Ah!” says he, rubbing his hands. “I am looking for the gentleman who calls himself Ashburton De Puyster.”

“Gee cripes!” wails Chuck. “They’ve had de-TECTIVES on my trail for twenty years, and now they’re using bug-hunters! Mister, I give up. Welcome to our brier-patch.”

“You are he?”

“In spite of —— and high water,” admits Chuck. “Set down.”

“Ah!” says he, and parts the rear of his coat before he sets down.

“I am Willis Van Tweed,” says he.

“Well,” says Chuck when there don’t seem to be any applause, “you know best.”

“I am attorney for Milton De Puyster,” says he. “I have—er—been informed that you arrived today, and in order that there might be no mistakes I—er—you understand that this is a delicate proposition to—er ——”

He rubs his nose and looks around.

“What proof have you to offer?”

“Of what?” asks Chuck.

“That you are named Ashburton De Puyster.”

“Them two,” says Chuck, pointing at me and Magpie. “That old coot is a prospector who has knowed me ever since the Sentinel Butte was a hole in the ground, and the old Injun was the one what stole me.”

“I see,” says he. “Go on.”

“I’m through,” says Chuck. “Take me or leave me.”

“Remarkable!” says he, and then he turns to Magpie.

“What do you know about him?” he asks.

“Well,” says Magpie, deliberate-like, “I first met him in 1890. He was punching cows for the Lazy Y outfit.”

“That was twenty years ago,” nods the old coot. “Was he a—er—capable man?”

“Old hand,” nods Magpie.

“Was he known as Ashburton De Puyster at that time?”

“Yeah. Long before that. I heard of the name five or six years before that. Jack Davis told me about a roper they had at the Circle C ranch about seven years before whose name was Ash——”

“My ——!” yelled Chuck. “Wait, Magpie! You must ‘a’ got the calendar mixed. Remember I’m only thirty-two now.”

Magpie twists his mustache and squints at the ceiling.

“Does the Indian talk English?” asks the lawyer.

“Intermittently,” says Chuck. “He’s got to like you or he won’t.”

“Do you like me?” he asks.

“Well,” says I, “you get danged personal at first sight.”

“Have you knowed Ashburton De Puyster very long?”

“I stole him when he was twelve.”

“From whom?”

“From whom?” I asks. “Whom was it, Ashburton?”

“I was too young to know,” says Chuck sad-like. “Don’t you know?”

“Too long to remember,” says I.

“About how long?” asks Van Tweed.

“Well,” says I, “as far as I can remember it was about thirty years ago. I ain’t been on the war-path for twenty-nine years, and that was quite a while before I swore off.”

“It is quite evident that you didn’t agree on a story,” says Willie. “And your testimony doesn’t match to any extent.”

“I’m him!” snaps Chuck. “These two old ignorant pelicans don’t know the Civil War is over, and wouldn’t tell the truth if they did.”

“Well, I’m afraid you’ll have to present stronger proofs than this before you have a case,” says he. “I bid you good afternoon.”

“Whoa!” says Magpie soft-like, and Willie Van Tweed looked, likely for the first time in his life, into the muzzle of a Colt .45.

“Set down,” urges Magpie. “You ain’t stayed long enough to be convinced. I wonder if there is any way to get a little drink. There’s one of them telephones over there on the wall.”

“Not me,” says Chuck. “I don’t *sabe* ’em.”

I’ve seen ’em used, so I imitates.

“Office,” says a mocking-bird.

“Let me *wau-wau* with the bartender,” says I.

“Oh!” says she, and then I can hear somebody laughing.

Then she says—

“What do you wish?”

“If I get what I wish for,” says I, “I’d wish for a whole case of whisky instead of a bottle.”

“Anything else?”

“Corkscrew,” says I, and hung the thing back on the hook.

“I—I beg your pardon, but I’ve an appointment, and my—er—time is valuable,” says Willie nervous-like.

“So is ours—dollar an hour,” says Chuck. “Stick for the dampness.”

“I really must go,” he squeaks. “This is—er—really, I wish you’d lower that gun.”

Comes a knock at the door, and when we yells for 'em to come ahead the door opens and in comes two fellers carrying a box. One of 'em hands Magpie a paper and pencil, and another lays a corkscrew on the table.

"Just sign it, sir," says the feller.

Magpie wrote something on the paper, and then turns to me.

"My gosh!" says he. "You must be dry, Ike. Seventy-two dollars' worth of hooch. I hope you're satisfied."

"I expect to be," says I, and then I procured four water-glasses. I measured out man-sized drinks, and handed one to Willie. He looks at it and shudders.

"Not any, thanks. My physician forbids it."

"He diagnosed you wrong," says Magpie. "Here's a toast:

"Here's hoping your cinch never busts.

Here's hoping your guns never rust.

May you die in your shoes

With your skin full of booze

Far away from the alkali dust.

"We're all going to drink," says Magpie. "All of us. *Sabe?*"

When Magpie speaks like that the present company usually obeys. That long, lean, tired-looking *hombre* has a impressive way about him.

Willie choked to death three times over that drink. Chuck bounced him up and down in the chair a few times, and he's as good as new. He takes a few deep breaths and picks up his cane.

"Not yet!" yells Chuck. "Gosh, man, this party is just starting. Fill 'em up, Black Hawk, and we'll drink another toast. All set?

"Here's to the land of chaps and quirt,

Where you may get killed but never hurt;

Where men wear hair on their pants and head,

And don't die off till they're killed plumb dead."

"Ha, ha, ha!" explodes Willie, and takes his without a murmur.

We sets there for a minute and looks at Willie. He puffs like he had been in a race, and wipes the tears out of his eyes.

“Ah-h-h-h!” says he, and then he kicks his cane off the table. “That’s good! Ha, ha, ha! Hair on their trousers, eh? Ha, ha, ha! Don’t hurt, eh? Fillum up again. I know a—ha, ha, ha—good one:

“Here’s to the dodo, a beautiful bird,
Who sits all the time and don’t say a word.
Never worried or argued or fussed in its life;
Wish I owned a dodo instead of a wife.

“Ha, ha, ha! My wife’s a dodo with the reverse English. Ha, ha, ha! Sorry I didn’t meet you gentlemen sooner.”

“Couldn’t,” grins Chuck. “Didn’t have the road cut out. Think there’s any question about me being who I am?”

“Not any—nossir. I’ve sheen your picture when you was a baby, and you haven’t changed a bit. Could you—ha, ha, ha—wiggle your ears in infancy?”

“Nope. At that time the wiggle was all in my toes, but I got rheumatism in ’em from damp war-paths, and the wiggle went to my ears.”

“Ha, ha, ha! Anybody know any more toasts?”

“Whoa!” says Magpie awed-like. “You’re going to get your wheels off the grade if you don’t haw a little. You’ve had two half-pint drinks already.”

“What will your wife think?” asks Chuck.

“Wife?”

Willie sticks his nose into the air and whistles.

“Pshaw! What do I care what she thinks? Nossir. It’s what she says and does before she thinks. No judgment.”

“Looking at you, Willie, I’d say you told the truth,” opines Magpie.

“The question is: When do I collect?” says Chuck. “I need the money.”

“We’ll go up there now,” says Willie. “Father and mother are gran’ ol’ couple, but skeptical. Oh, awful skeptical. Don’t know you’re in town. Editor of *Ledger* called me up and told me about it. Mus’ thank him. Anybody know any more toasts?”

We had one more, and then I lost all my arrows on the way down. The number on our room was something over twelve hundred, and I reckon they numbers the rooms according to the number of steps it takes to get up to 'em.

I fell down steps until I figures that my future is going to be one continuous descent. Me and Willie runs a dead heat, but he got on the rail and slid the last fifty feet, and we entered that multitude all in a heap. There wasn't any applause, I'd tell a man.

My buckskin shirt is split all the way up the back, and Willie's pants-legs are split all the way up the sides. He's got his hard hat jammed down over his nose, and half of his collar rears up the back of his neck.

Magpie and Chuck bumps down the last flight and joins us.

"Ah-h-h-h!" says Willie. "We should have taken the lift."

"Holy hen-hawks!" wails Chuck. "Wasn't we high enough to suit you?"

"Mister Van Tweed, I'm—er—sorry—— I—— What seems to be wrong?" stutters the boss of the place.

We squints around, and finds that we're the center of an inquisitive herd of folks.

"Tha's all ri'," squeaks Willie. "Ha, ha, ha! Here's where men wear hair on their pants. Whee-e-e-e! Tha's all right; nobody got hurt."

"Ain't he a regular ring-tailed cross between a wolf and a whangdoodle?" asks Magpie admiringly, but the crowd don't applaud.

"Willis Van Tweed!" shrieks a woman's voice, and a decorated female busts into our midst. She's got more sparklers on than "Faro" Fannie ever seen, and she stands there peering at Willie through a pair of specs on a handle.

"Woman," says Willie dignified-like, "there is nothing wrong. I'm a cross between a whang and a wolfdoodle. May you die in your shoes with your shoes full of—er—— Let's go; eh? What shay?"

The woman sets down hard on the sofy and drops her specs on the floor, but Willie don't pay no attention and the three of us follers him out of the

front door. There's a automobile standing near the door, and on the sidewalk is a policeman, who salutes Willie.

"Taxi," says Willie. "We would ride."

"Got protection," says Chuck as we rolls away. "Policeman riding with the driver."

"Yep," says Magpie. "And he ain't doing it to save his hoofs, either."

The machine seems to sort of slow down, and then Magpie pulls his gun, knocks out the little window on his side and shoves his gun into the policeman's back.

"Straight ahead!" snaps Magpie. "We'll tell you when to stop."

"What's the idea?" asks Chuck.

"Police station to the right," says Magpie. "This is that anti-medicine policeman and that thirty-two-dollar hack we rode in this morning."

"So?" says Chuck, wiggling his ears.

He knocks out the window on his side, and almost punched the driver off the seat with his gun. Then we sure had some ride. We went plumb out to where the moon shone on meadows bright and clear, and then we makes 'em stop.

The clock said it was fifteen-fifty, but time didn't bother us. We set the driver and policeman on the fence in the moonlight, and then we all has another shot out of the bottle Chuck brought along. Them two on the fence objects, but their objection ain't sustained by the four judges.

Willie wanted to throw a rock at 'em, but Chuck took the rock away from him.

"I'll drive," says Magpie. "I drove Scenery Sims' machine once."

"I'd admire to walk then," says I. "I rode with you that time."

Willie went to sleep during the argument, so we dumped him inside and climbed aboard.

"If you bust up that hack you'll pay well for it," says the driver.

“If we live,” says Magpie. “I reckon this is the same thing as taking a gun away from a burglar, so my conscience don’t pain me none.”

“Give her room,” says Chuck. “I can ride anything you can drive.”

He had a chance to prove it. It was all right as long as we had a straight road, but Magpie ain’t there when it comes to cutting them curves.

We lopes along for a few miles, and then we hits a down grade. That benzine bronc begins to gallop wild and free, sort of cavorting from one side to the other, and then cometh a curve.

Something seems to yank the road out from under us, and we went regardless. When we hit the road again there ain’t no top left on the hack, I’ve got a portion of picket fence around my neck and Chuck is reared back against the seat with a rooster in his hands.

Willie has lost his hat, and from the smell around there I’d say that we hit a setting of eggs that had lasted about halfway to the little chickens.

“Anybody pull leather yet?” yells Magpie.

“Hit ’em again!” yells Chuck. “Hit another hennery and we’ll have enough to pull off a cock-fight!”

That hack seems to limp a heap like she’d lost her wind, but we got her to rolling good again, and when we came to the next curve Magpie tried to make it, but the blasted thing changed ends on a wet spot and we stopped with our tail-gate against a tree.

Across the street from us is a big house, lit up like a church, and when Willie sees it he shakes his head a few times and squeaks:

“Tha’s the place. Tha’s your home, Ashburton. Welcome home.”

“You’re welcome,” says Chuck, standing up.

He takes off his hat and bows low.

“Ten million, I greets you.”

“I’ve got a good idea,” says Magpie. “Let Chuck go in alone and give ’em a real surprize.”

“Shuppose they don’ recognize him?” argues Willie.

“He can talk, can’t he?” I asks. “He was lost—not dumb.”

Chuck went. From where we sets we can see the door open, and pretty soon Chuck comes walking back, falling over flower-beds and talking to himself.

“Get the money?” I asks.

“Naw-w-w! Wrong place. Willie must be drunk.”

“Nossir,” says Willie. “Tha’s ri’ place—betcha. What happened?”

“I knocked at the door,” says Chuck sad-like. “Man came to door. I says, ‘Papa, I’ve come home to die,’ and I grabbed him around the neck.”

“Kiss him?” I asks.

“Uh-huh.”

“Then what?” asks Magpie.

“He hit me in the neck and knocked me among the flowers. Said his name was Butler.”

“Ha, ha, ha!” howls Willie. “You ki-kissed Perkins.”

“——!” snorts Chuck. “You know too many names, Willie. I’m through. I may have ten millions coming, but I don’t want it that bad. Cripes, that *hombre* bent me all up.”

“Aw ——!” grunts Magpie. “You’re too rough, Chuck. You better quit kissing strangers. We’ll all go in, and I’ll do the talking. *Sabe?*”

“Ha, ha, ha!” chuckles Willie. “Kissing Per——”

“E-nough!” howls Chuck. “Shut up or I’ll kiss you—you shrimp!”

A big *hombre* opens the door and scowls at us.

“Perkins,” says Willie dignified-like, “announce me to the De Puysters; I will vouch for my friends.”

“Very good, sir,” says he. “There’s a reception going on, sir.”

“The more the merrier, Perkins.”

We all walks in on a noiseless carpet, and I hears somebody playing on a piano.

“Mister Willis Van Tweed and friends,” announces Perkins, and we all pilgrims into a big room full of folks.

The light is so bright that we can’t see much, but I deciphers the female that yelped at Willie in the hotel. She slides right up and grabs him by the

arm.

“Willis Van Tweed—you!” she wails low-like and folks look uncomfortable.

“What is the meaning of this?” asks a big *hombre*, who is wearing a shirt-front three feet across. “Who are these people?”

I looks around for Willie, and I gets a glimpse of his busted pant-legs going up-stairs beside the exasperated lady.

“I’m a old prospector,” says Magpie humble-like. “The buck Injun is old Black Hawk, chief of the long extinct Cactus tribe, and that wiggle-eared *hombre* over there is your lost son, Ashburton.”

“Queer,” says the feller, turning red, “but I never was married.”

“My ——!” explodes Chuck. “What will the neighbors say?”

“I am De Puyster,” states a bald-headed little coot about the same size as Willie, coming to the front. “Who did you say——”

“Papa, don’t you know me?” asks Chuck. “I am your little son.”

A hard-faced lady seems to appear out of the main herd, and she peers at Chuck and then at the De Puyster person.

“You say—— Who are you?” she asks, and her voice is tuned thin.

“The son of Milton De Puyster,” says Chuck weary-like.

“My dear,” says the little feller weak-like, “there’s some mistake. I—I never had a son; I swear it.”

Me and Chuck and Magpie looks foolish-like at each other.

“You—you say he’s your father?” asks the lady.

“Yes’m. I wouldn’t lie to you.”

“Is—that—your—father?” she asks deliberate-like, pointing at De Puyster.

“As natural as a flea on a pup,” states Chuck. “Older—that’s all.”

That assemblage grows as quiet as a graveyard. Then from the top of the stairs comes:

“Here’s hoping your cinch never busts.
Far away from the alkali dust.
Where hair grows on your pants,
And you’re dead when you die.
Wish I had a dodo instead of a wife. Amen.”

“Amen,” says Magpie pious-like.

“It—it must be a joke,” quavers De Puyster. “It—— I don’t like it.”

“But directions says take it,” says Chuck.

Crash! We hears glassware hit the floor.

“Heavens!” wails somebody. “He fell all the way down into the punch!”

Here comes Willie, pant-legs flapping and golden liquor is running off his whiskers. He don’t see nobody, Willie don’t. He points straight for the front door and disappears.

“I don’t know what to think,” says somebody awed-like. “Van Tweed of all persons on earth! Appearing in such a state and——”

Comes a lot of voices at the door, and we turns to see two policemen coming in, half-dragging poor Willie, who is protesting loud-like.

“What—what does this mean?” asks De Puyster.

“Stole a taxicab,” pants the officer. “Assaulted an officer. There were three—— Ah, there you are!” he whoops when he sees us. “We’ve been looking for you three.”

He starts for Magpie, who is backed up against the wall, right under a big picture. I expects Magpie to pull a gun, but he don’t.

He puts up both hands meek-like, and takes hold of the two corners of that frame, and before the policeman knows what the game is he gets crowned plentiful. It knocks him flat, and there he sets with his head through the canvas, and Magpie stands with both feet on the frame.

The other policeman yanks something out of his pocket, and the next second the whistle blew.

I didn’t know there was that many policemen in the world. They comes into that front door in a group, and every one has got a club in his hand.

“Pow-w-w-w-der Ri-i-i-i-ver!” yells Magpie, and shoots at the lights.

Man, I’d say there was something doing. Some wise man must ’a’ knowed what to do in a case like that, ’cause the lights went out. I gets hit in the neck and knocked under a table, and when I comes out the other side I grabs somebody by the neck and started to waltz.

“Ike!” hisses Magpie. “Let go my neck and take Willie by the feet!”

I reached down and grabbed a pair of limp legs, and follered Magpie. He sure knowed where to go. We bumped into a lot of folks, but kept on going until we hit the open. Chuck is right behind us. We trots across the yard, bumps into a fence and all fell down.

“Help boost him over the fence,” says Magpie.

The three of us swings the supine body over the top, and then climbs after it.

“Couldn’t let the police get the poor little devil,” pants Magpie. “Wish he could walk a little.”

Our little friend seems to get action back into his legs, and we went faster. We skids across a street, got our bearings by a engine-whistle, and pointed straight for a railroad yards. We crawled under a fence and pulled Willie after us.

There stands a freight-train with an engine on the west end, so we boosts our pal into a empty box-car and crawls in after him. As we shut the door the train moves out of Burlingame.

“I hung on to the bottle,” pants Chuck, and hands it to me in the dark.

“Good,” says I. “We’ll drink a toast to Willie Van Tweed; eh, Willie?”

TRANSCRIBER’S NOTE

This story appeared in Adventure Magazine, April 3, 1920. It is believed to be in the public domain in the United States; copyright status may differ in other countries.

*** END OF THE PROJECT GUTENBERG EBOOK ASSISTING
ANANIAS ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement

and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted

with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work

from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you ‘AS-IS’, WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration,

modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from

outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility: www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.